

immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Denny Mayeda v. Grant Reynolds et al

21CV001212

DEFENDANT’S MOTION TO DISMISS COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A to allow the moving party to provide sufficient notice of the motion.

June 19 and July 3, 2026 were Court holidays. (See Code Civ. Proc., §§ 10, 135, and Govt. Code, § 6700, subds. (a)(11) and (12).) As a result, June 11, 2026 was the last day for service, by mail, of a notice and papers filed in support of a motion set for hearing on July 10, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b).) The evidence of service before the Court indicates mail service on June 12, 2026. As such, the moving party failed to serve the notice and moving papers 16 court days plus five calendar days before the hearing as required. Because the other parties to the action have not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

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M5 Automotive LLC v. Kastner Automotive Inc. et al

22CV000567

PLAINTIFF AND CROSS-DEFENDANT M5 AUTOMOTIVE LLC’S MOTION FOR: (1) AN ORDER RULING THAT ENFORCEMENT OF THE FEE AND COST AWARD IS NOT AUTOMATICALLY STAYED BY APPEAL AND THAT AN UNDERTAKING IS REQUIRED; OR, IN THE ALTERNATIVE, (2) AN ORDER REQUIRING A DISCRETIONARY UNDERTAKING

TENTATIVE RULING: The matter is CONTINUED to August 7, 2026, at 8:30 a.m. in Dept. A.